

20STCV49852 20STCV49852

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-07-15

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C732%2C07%2F15%2F2026

Source SHA-256: a1cfbbe2ac171267d7da7e60017ab2d704ca680d1aad3313f16980f5efd695c6

Case Number: 20STCV49852 Hearing Date: July 15, 2026 Dept: 732

Elias Saikali, et al. v. Samuel Wassif, et al.

Wednesday, July 15, 2026

CASE NUMBER: 20STCV49852

UNOPPOSED

Plaintiffs Elias Saikali and Rania Saikali's Motion to Amend Judgment to Add DW Francis Investment LLC as a Defendant and Judgment Debtor

Facts: This is an action for fraud and breach of contract. The Complaint alleges as follows. Plaintiffs Elias Saikali and Rania Saikali (Plaintiffs) entered into an agreement to invest in various real property projects with Defendants Samuel Wassif, Dalal Wassif, and Everest Enterprises, LLC (Defendants). (Complaint ¶ 11.) Plaintiffs were induced to invest by representations that Defendants would split the profits equally with Plaintiffs and that Plaintiffs would be given a 50% interest in valuable land in Victorville. (Complaint ¶ 11.) Defendants proceeded to sell properties without notifying Plaintiffs, and offer them partial payments without any accounting, despite Plaintiffs' requests. (Complaint ¶¶ 14–15.)

Procedural History: Plaintiffs filed the Complaint on December 30, 2020, alleging three causes of action:

Intentional Misrepresentation

Negligence Misrepresentation

Breach of Contract

Plaintiffs filed a First Amended Complaint (FAC) on May 13, 2021, alleging the same causes of action.

This court on August 11, 2021, sustained the demurrer of Defendants Everest Premiere Enterprises and D&R Premiere Enterprises, LLC, with leave to amend.

Plaintiffs filed the Second Amended Complaint (SAC) on September 9, 2021.

On November 16, 2021, this court overruled Defendant Everest Premiere Enterprises' demurrer to the complaint.

On July 25, 2023, this court denied Rania Saikali and Elias Saikali's motion for summary judgment.

A bench trial was held in this matter from September 26 to September 27, 2023.

On November 30, 2023, the court entered judgment in favor of Plaintiffs and ordered damages of \$1,179,500.00.

An amended judgment was entered on February 2, 2024, adding \$500,000 in punitive damages for a total award of \$1,679,500.00, and permitting further amendment upon a showing of prejudgment interest.

This court on April 28, 2025, granted in part Plaintiffs' motion to amend judgment, awarding \$364,836.35 in prejudgment interest.

Plaintiffs filed the present motion to amend judgment on October 16, 2025.

Defendant Wassif filed declarations on March 4, 2026. It is unclear if these declarations are addressed to the present motion.

On May 1, 2026, Plaintiffs filed an opposition to motion to strike and request for sanctions, which Samuel Wassif evidently served in connection with the present motion. But no such motion to strike has been reserved, and it does not appear in the court's file.

Analysis:

MOTION TO AMEND JUDGMENT

Code of Civil Procedure § 187 provides:

When jurisdiction is, by the Constitution or this Code, or by any other statute, conferred on a Court or judicial officer, all the means necessary to carry it into effect are also given; and in the exercise of this jurisdiction, if the course of proceeding be not specifically pointed out by this Code or the statute, any suitable process or mode of proceeding may be adopted which may appear most conformable to the spirit of this code.

"Code of Civil Procedure section 187 authorizes a trial court to amend a judgment to add judgment debtors. The court may exercise its authority to impose liability upon an alter ego who had control of the litigation, and was therefore represented in it. The addition of a new party as judgment debtor stems from the concept of the alter ego doctrine, which is that an identity exists between the new party and the original party, whose participation in the trial leading to the judgment represented the newly added party. Therefore amending a judgment to add an alter ego does not add a new defendant but instead inserts the correct name of the real defendant. In order to see that justice is done, great liberality is encouraged in the allowance of amendments brought pursuant to Code of Civil Procedure section 187. (Misik v. D'Arco (2011) 197 Cal.App.4th 1065,

1072–1073, internal quotation marks and citations omitted.)

“The first requirement for disregarding the corporate entity under the alter ego doctrine—whether there is sufficient unity of interest and ownership that the separate personalities of the individual and the corporation no longer exist—encompasses a series of factors. Among the many factors to be considered in applying the doctrine are one individual's ownership of all stock in a corporation; use of the same office or business location; commingling of funds and other assets of the individual and the corporation; an individual holding out that he is personally liable for debts of the corporation; identical directors and officers; failure to maintain minutes or adequate corporate records; disregard of corporate formalities; absence of corporate assets and inadequate capitalization; and the use of a corporation as a mere shell, instrumentality or conduit for the business of an individual.” (Id. at p. 1073.)

“The second requirement for application of the alter ego doctrine is a finding that the facts are such that adherence to the fiction of the separate existence of the corporation would sanction a fraud or promote injustice.” (Ibid.)

“[S]ection 187 applies only if the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented.” (Greenspan v. LADT, LLC (2010) 191 Cal.App.4th 486, 517.)

Plaintiffs and Judgment Creditors Elias Saikali and Rania Saikali (“Plaintiffs”) seek to amend the judgment entered in their favor on June 9, 2025, to add DW Francis Investment, LLC (“DW”) as a judgment debtor and defendant, alongside existing defendants and Everest Premiere Enterprises, LLC, Samuel Wassif and Dalal Wassif. Plaintiffs argue that DW was formed in 2019 with Samuel Wassif as the sole managing member and CEO, and in 2021, while the present case was pending, was the recipient of a number of grant deeds for real properties owned by Defendant Everest Premiere Enterprises, LLC, also owned and managed by Samuel Wassif. (Sirias Decl Exhs. E, F.)

Plaintiffs here seek “outside reverse veil-piercing,” by which outsiders to the corporation seek to hold corporations liable for the debts of their owners. (See Curci Investments, LLC v. Baldwin (2017) 14 Cal.App.5th 214, 221 [“Rather than seeking to hold an individual responsible for the acts of an entity, reverse veil piercing seeks to satisfy the debt of an individual through the assets of an entity of which the individual is an insider.”].) It has been held that, while California does not generally permit application of the doctrine against a corporation of which a debtor is a shareholder, it may be applicable to limited liability companies of which a debtor is a member. (Curci Investments, supra, 14 Cal.App.5th at p. 223.)

Plaintiffs have demonstrated that a unity of interest exists between Defendants Samuel Wassif, Everest Premiere Enterprises, and DW. Samuel Wassif is the managing member and CEO of DW. (Sirias Decl. Exh. E.) He is also the managing member of co-defendant and judgment debtor Everest Premiere Enterprises, as demonstrated by his signatures as such on the grant deeds presented by Plaintiffs. (Sirias Decl. Exh. F.) These grant deeds transferred, during the course of this action, various properties from Everest to DW, both enterprises controlled by Samuel Wassif, in a direction that insulated them from enforcement efforts on any judgment against Defendants. (Sirias Decl. Exh. F.) The Bellflower Boulevard address listed on DW's corporate filings is the same Bellflower Boulevard address (but for the suite number) listed for all Defendants in their substitution of counsel forms filed on September 6, 2023. (Sirias Decl. Exh. E.) The evidence thus demonstrates common ownership and control, intermingling of assets, use of the same business location, and use of the DW corporate form as a mere shell. By the same evidence, Plaintiffs demonstrate that DW was effectively in control of the underlying litigation through its alter egos, and was virtually represented therein.

Additionally, Plaintiffs refer back to their prior motion for fraudulent conveyance, which included testimony from Samuel Wassif in a debtor's examination stating that he has no intention of paying the judgment ordered against him, arguing that Defendants have no assets sufficient to pay. (Motion at p. 7; See 3/11/2025 Motion for Fraudulent Conveyance, Sirias Decl. Exh. B at p. 21.) Plaintiffs thus demonstrate that adding DW as a judgment debtor and defendant is necessary to avoid an inequitable result, as Defendants will otherwise continue to shuttle assets among different entities in order to avoid payment on their debts.

The motion is therefore GRANTED.

Superior Court of California

County of Los Angeles

Department 732

ELIAS SAIKALI, et al.;

Plaintiffs,

vs.

SAMUEL WASSIF, et al.;

Defendants.

Case No.:

20STCV49852

Hearing Date:

July 15, 2026

RULING RE:

Plaintiffs Elias Saikali and Rania Saikali's Motion to Amend Judgment to Add DW Francis Investment LLC as a Defendant and Judgment Debtor

Plaintiffs Elias Saikali and Rania Saikali's Motion to Amend Judgment to Add DW Francis Investment LLC as a Defendant and Judgment Debtor is GRANTED..

Plaintiffs to provide notice.

Dated: July 15, 2026

Hon. Richard S. Kemalyan

Judge of the Superior Court